

Motion for Summary Judgment

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (Ibid.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at p. 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (FPI Development v. Nakashima (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1258; Nieto v. Blue Shield of Calif. Life & Health Ins. Co. (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a

triable issue as to that affirmative defense or cause of action. (Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (Doe v. Salesian Society (2008) 159 Cal.App.4th 474, 481; Bushling v. Fremont Med. Center (2004) 117 Cal.App.4th 493, 510.)

This case arises from a motor vehicle accident that occurred on or about April 20, 2022, on the Southbound Interstate 405 freeway at or near Brookhurst Street, Fountain Valley, California 92708 (“Subject Incident”). (Separate Statement of Undisputed Facts (SSUF) 1.)

On April 19, 2024, Plaintiffs filed their Complaint against Defendants alleging two causes of action for Motor Vehicle Negligence and General Negligence. (SSUF 2.)

The elements of a cause of action for negligence are (1) the existence of a legal duty to use due care; (2) a breach of that duty; and (3) the breach as a proximate cause of the plaintiff's injury. (Wattenbarger v. Cincinnati Reds, Inc. (1994) 28 Cal.App.4th 746, 751; Federico v. Superior Court (Jenry G.) (1997) 59 Cal.App.4th 1207, 1210–1211; CACI 400.)

Here, the form Complaint alleges that: “On or about April 20, 2022... defendants and each of them, negligently, recklessly and without due care, owned, rented, leased, entrusted, operated and/or controlled the motor vehicle and/or otherwise is legally responsible for causing

		plaintiffs to sustain injuries and damages for which the plaintiffs are seeking compensation herein.” (Form Complaint, p. 5.) Based on deemed admitted orders, the Court has conclusively established that Defendants did not cause the accident or Plaintiffs’ injuries, Plaintiffs have no damages, and it was Plaintiff Vasquez who was negligent. (SSUF 6-16.) Plaintiffs chose not to oppose this Motion. Thus, Plaintiffs have not met their burden to show any triable issue of material fact. The Motion for Summary Judgment is GRANTED. Moving Defendants are ordered to serve notice.
55	<i>Merchant Capital Source, LLC. Vs. Pima Orthopedic Physicians, LLC.</i>	Before the Court is Plaintiff/Judgment Creditor’s Motion to Compel Compliance and for Turnover Order. Although the notice of motion states the motion to compel compliance and turnover order is made against Judgment Debtors Pima Orthopedic Physicians, LLC, dba Pima Orthopedic Physicians, Arizona Medcorp, Inc, dba Knees First, John C. Medlen MD PC, and Claire Benchetrit, aka Claire B. Staal, aka Kreina Staal, Plaintiff/Judgment Creditor is seeking an order compelling a third party, JP Morgan Chase Bank, to release funds. (Motion, 1:22-2:2 and 2:6-8.) There is no proof of service showing the notice of motion and supporting papers were served on any judgment debtor or, in this instance, the third party bank, JP Morgan Chase Bank. (Cal. Rules of Ct., Rule 3.1300(c).)